



POLICE DEPARTMENT

May 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208146 (Incident Date: November 17, 2022) regarding Sergeant Joseph Power, Tax No. 956180 (DADS No. 2023-29620)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208146, pertaining to Sergeant Joseph Power (then Police Officer Power at the time of the incident). Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Power would be detrimental to the Police Department's disciplinary process.

The Police Commissioner has determined that no disciplinary action should be taken for the failure to provide a business card allegation. The Police Commissioner has deemed this was not a situation where a business card was required to be provided. Sergeant Power was assisting other officers during a traffic stop, for a New York State Vehicle and Traffic Law (VTL) infraction. Vehicle stops for VTL infractions are not situations where a business card must be provided per Administrative Guide Procedure No. 304-11 (Compliance with New York City Right to Know Act). The Police Commissioner disagrees with CCRB's analysis that Sergeant Power was required to provide a business card. It is clear from the body worn camera footage that Sergeant Power ordered the complainant back into his vehicle in an attempt to control the car stop, and have him wait in the vehicle, while the other officer prepared the summonses. Sergeant Power stated the reason he ordered the individual back into his vehicle was to allow his fellow officer to complete their job. Sergeant Power felt he was at a tactical disadvantage to allow the individual to be outside of the

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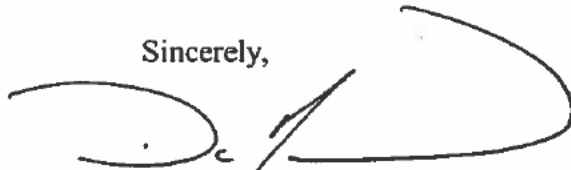
Website: <http://nyc.gov/nypd>

vehicle, while officers were sitting in their vehicle writing a summons. Sergeant Power also felt the individual was escalating the situation and he was attempting to de-escalate the situation. The Police Commissioner finds his actions reasonable, as officer safety is paramount, car stops are inherently dangerous, and a business card was not required to be provided in this situation.

Additionally, the Police Commissioner agrees with the CCRB substantiating the remaining allegations. However, the Police Commissioner has determined charges and specifications is not the appropriate penalty for these allegations. Sergeant Power has no prior substantiated CCRB's, and no prior formal disciplinary history. Furthermore, Sergeant Power has also been the recipient of seventy-eight (78) medals during his ten (10) years as a member of the Department.

As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation that he failed to provide a business card. However, the Police Commissioner intends to direct the issuance of a Schedule "B" Command Discipline for the allegations of discourtesy and failing to activate his body-worn camera.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

May 7, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case Nos. 202208146 (Incident Dates: November 17, 2022 on DADS No. 2023-29620) involving Sergeant Joseph Power, Tax No. 956180.

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 2, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) request for Charges and Specifications in this matter you have determined that no disciplinary action should be taken for the failure to provide a business card allegation. Furthermore, Chief Marino’s letter states that for the remaining allegations you believe that it would be detrimental to pursue Charges and Specifications and that you intend to instead issue a Command “B” Schedule Discipline.

The CCRB disagrees with the Commissioner’s intention. As for the failure to provide a business card allegation, in this case SGT Power slammed § 87(2)(b) car door. § 87(2)(b) then reopened the door and yelled, “Why are you slamming my door like that?” SGT Power walked back over to § 87(2)(b) closed the door, and said, “You are not free to leave and you are not free to get out of the car. Okay? Sit in the car and be a good boy.” These actions by SGT Power clearly constitute a Level 3 stop and, because SGT Power did not issue § 87(2)(b) a summons or arrest him, SGT Power was required per the Administrative Guide to offer a business card.

Additionally, the CCRB believes that the remaining allegations of discourtesy and failure to activate body-worn camera merit the issuance of Charges and Specifications, and

would request that the requested Charges and Specifications be served upon SGT Power so that the disciplinary process may proceed.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 9, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208146 (Incident Date: November 17, 2022) regarding Sergeant Joseph Power, Tax No. 956180 (DADS No. 2023-29620)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 7, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Joseph Power. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Power for the reasons expressed in my May 6, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegation that he failed to provide a business card. The Police Commissioner also directs the issuance of a Schedule “B” Command Discipline for the allegations of discourtesy and failing to activate his body-worn camera.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office